

LEASE

This Lease is made this _____ day of _____, 2018, between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, 2101 O’Neil Avenue, Cheyenne, Wyoming 82001 (“City”), and Little America Hotels & Resorts, Inc., a corporation organized and existing under the laws of the State of Wyoming, 2800 West Lincolnway, Cheyenne, Wyoming 82001 (“Lessee”).

**SECTION ONE
DESCRIPTION OF PROPERTY; TERM**

In consideration of the rent provided for in Section Two of this Lease, City leases to Lessee real property belonging to City located in Laramie County, Wyoming, and more particularly described as a site for the placement of a billboard advertising sign at a location near mile post 347.3 on the south side of Interstate 80, approximately 13 miles west of Cheyenne, Wyoming, for a term of five (5) years beginning on the date that this Lease is fully executed by the parties. That date shall be hereinafter referred to as the “commencement date.” The advertising sign site is hereinafter referred to as the “leased property.”

**SECTION TWO
RENT**

Lessee shall pay City an annual rent of One Thousand (\$1,000.00) payable within thirty (30) days after the commencement date, and payable in the advance on the commencement date in each year thereafter for the entire term of this Lease.

**SECTION THREE
USE OF PROPERTY**

Lessee shall use the leased property for the construction and maintenance of a billboard, measuring no more than 48 feet in length by 14 feet in height, and for no other purpose whatsoever. Lessee shall not place on the leased property any advertisement for alcohol or tobacco products.

**SENTION FOUR
COMPLIANCE WITH LAW**

In its use of the leased property, Lessee shall fully comply with all applicable federal, state, county and municipal statutes, rules, regulations, and ordinances. In its use of the leased property, Lessee shall secure from the proper authorities all required licenses and permits before commencing any construction, re-construction, or significant repair of the billboard.

**SECTION FIVE
REPAIRS AND MAINTENANCE**

Lessee shall, at all times during the term of this Lease, keep all improvements placed by Lessee on the leased property in good repair, and shall maintain them at all times in a clean and attractive condition. Construction and maintenance activities shall be conducted in a manner that is not hazardous to livestock, including the installation of fencing if necessary to prevent unreasonable risk of harm to livestock. Lessee shall be responsible for any and all livestock injuries and deaths caused or in any way resulting from construction or maintenance activities.

**SECTION SIX
INSURANCE**

Lessee shall obtain, and keep in full force and effect at all times during the term of this Lease, the following specified insurance coverages for the protection of City and Lessee against liability arising out of the condition of the leased property, the improvements erected on the property, or any operations of Lessee conducted pursuant to this Lease. In the event the Lessee retains independent contractors to perform any operations on City land pursuant to this Lease, the insurance requirements stated in this Section shall also apply to each and every such contractor.

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000.00 per occurrence, \$2,000,000.00 aggregate for the entire term of this Lease.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000.00 per accident for the entire term of this Lease.

Workers' Compensation

Workers' Compensation coverage shall be in effect for the entire term of the Lease, as required by Wyoming law, for all employees or agents providing services under this Lease. Lessee shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Workers' Compensation	Statutory
OR	
Employer's Liability	\$500,000 Each Accident \$500,000 Each Disease Policy Limit \$500,000 Disease/Each Employee

Additional Insurance Information

Lessee shall provide the City copies of certificates of insurance acknowledging the above-stated coverages prior to entering upon City's land for the purpose of conducting any operations pursuant to this Lease.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Lease shall be in effect for the duration of this Lease. It shall be an affirmative obligation upon Lessee to immediately notify the City's Risk Manager, City Clerk and City Attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Lease, and failure to do so shall be construed to be a breach of this Lease.

In addition, Lessee shall provide the City with copies of insurance policies and policy endorsement listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Lessee's obligations hereunder.

Any insurance company providing coverage under this Lease shall have a minimum A. M. Best rating of A – (excellent).

SECTION SEVEN OWNERSHIP OF IMPROVEMENTS

All improvements erected by Lessee on the leased property shall remain the property of Lessee, and shall be removed by Lessee at the termination of this Lease.

SECTION EIGHT ACCESS TO LEASED PROPERTY

City grants Lessee the right to pass to and from the leased property over City's private roads located on the City's Belvoir Ranch for the purposes of construction, maintenance, and repair of the billboard advertising sign located on the leased premises; provided, however, that Lessee shall use said private roads in accordance with good management practices and shall take reasonable precautions to prevent damage to said roads and to the ranch lands adjacent to said roads on the leased property.

SECTION NINE TERMINATION

A. By City.

1. If the City should make a bona fide contract for the sale of the leased property, the City may, at City's option, terminate this Lease by giving Lessee one hundred and eighty (180) days' notice in writing, and refunding the Lessee the rental paid in advance pro rata for the unexpired term of this Lease.

2. If Lessee defaults in the payment of rent, or breaches any other covenant or condition of this Lease, the City may, in addition to any other remedy that the City may have, declare a forfeiture of this Lease for the default, re-enter the leased property, and remove all personal property from the premises.

B. By Lessee. During the term of this Lease, should the use of the leased property for the purpose permitted by this Lease be prohibited, limited or restricted by the terms of any restriction, covenant, regulation, ordinance, or zoning resolution affecting the property, Lessee may, at Lessee's option, terminate this Lease by giving the City thirty (30) days notice in writing of its election to do so.

C. Upon termination of this Lease, Lessee shall restore the leased property to its natural state including, without limitation, filling all holes and removing all debris caused by the removal of billboard signs and other items of personal property placed on the leased property by Lessee.

SECTION TEN EFFECT OF CONDEMNATION

If the leased property, or any part of the leased property, is taken by eminent domain, this Lease shall terminate on the date when title vests pursuant to such taking.

SECTION ELEVEN RENEWAL OPTION

The Lessee Shall have the option to extend this Lease for one additional five (5) year period, provided, however, that said option may be exercised only if (1) the Lessee is not in default of any of the terms and conditions of this Lease at the time the option is exercised; (2) the Lessee has practiced good stewardship of the leased property, access roads, and adjacent ranch lands as determined by the City in the exercise of its reasonable discretion; and (3) the Lessee provides written notice to the City of its intent to exercise its option to renew at least one hundred and twenty-days (120) prior to the scheduled expiration of the Lease. Any such extension shall be on the same terms and conditions as set forth in this Lease, unless such terms and conditions are amended or renegotiated pursuant to mutual written agreement.

SECTION TWELVE IDEMNITY

The Lessee agrees to defend, hold harmless, and indemnify the City of Cheyenne, its officials, employees, agents, and authorized volunteers against and all claims and costs, including attorney's fees, arising during or resulting from Lessee's performance of its obligations under this Lease. The Lessee acknowledges its understanding of this paragraph and realizes it may have a financial responsibility to the City. The City does not waive any applicable defenses and expressly reserves the right to invoke governmental immunity pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. 1-39-101, et seq. for any claim arising out of this Lease.

It is expressly understood and agreed that although the City has the right to observe and review the work and operations of the Lessee, this shall not relieve the Lessee from any of its covenants and obligations hereunder, and the Lessee shall be responsible for and hold the City and its officers, employees, agents, and representatives harmless from all suits, actions or claims of any character due to injuries or damages sustained by any person or property in consequence of any breach or of default under this Lease, or of failure to observe safety standards or regulations, or otherwise, or through the use of unsafe or unacceptable practices or materials in the performance of any operations under this Lease, of the Lessee's failure to comply with any law, ordinance, or regulation.

The parties have executed this Lease the day and year first
above written.

(The remainder of this page left intentionally blank)

LITTLE AMERICA HOTELS & RESORTS, INC.

By: _____

Name _____

Title _____

[illegible]

The foregoing instrument was acknowledged before me by _____
this _____ day of _____, 2018.

Witness my hand and official seal.

Notary Public

My commission expires: _____

CITY OF CHEYENNE, WYOMING

By: _____

Marian J. Orr

(SEAL)

Attest:

Carol Intlekofer, City Clerk

[illegible]

The foregoing instrument was acknowledged before me by Marian J. Orr, this _____ day of _____, 2018.

Witness my hand and official seal.

Notary Public

My commission expires: _____